

		The court is inclined to grant approval of an attorneys' fees request of only 30% of the gross settlement amount, which the court finds fair, adequate and reasonable for the settlement of this size. The parties may either reduce the attorneys' fees request by amendment to the settlement agreement and the class notice, or Plaintiff shall provide documentation and support for any request higher than this percentage at the final approval stage. The settlement agreement does not state whether it is reversionary or non-reversionary. The court will not issue an injunction against the aggrieved employees or the State of California. Res judicata and collateral estoppel arguments should provide defendants with sufficient protection against facing these same claims again. Thus the phrase "The Aggrieved Employees and the State of California will be deemed by operation of the Final Order and Judgment to have agreed not to sue or otherwise make a claim against Defendants and/or any of the Released Parties for the PAGA Claims that arose during the PAGA Period, to the extent permissible by law." must be removed from Paragraph 49 of the settlement agreement and Page 5 of the class notice. Counsel should propose a realistic Final Approval Hearing date, bearing in mind that all papers in support of the Final Approval Hearing, including detailed hourly breakdowns of plaintiff's attorneys to support a lodestar cross-check, detailed plaintiff attorney cost breakdowns, an Administrator declaration and invoice, and plaintiff's declaration to support the enhancement request, must be filed at least 16 calendar days before the Final Approval Hearing date, to provide enough time for court review, and must be served in compliance with CCP notice of motion requirements. Plaintiff shall provide notice of this ruling to the LWDA, and to Defendants.
9	30-2023-01360696 Cuevas vs. Brothers International Desserts, Inc.	The tentative ruling is to continue Plaintiffs Mario De Jesus Cuevas and Grecia Veliz Castillo's (collectively, "Plaintiffs") Motion for Preliminary Approval of Class Action and PAGA Settlement to November 2, 2026 at 1:30 p.m.

		Counsel must file supplemental papers addressing the court's concerns (not fully revised papers that would have to be reread) no later than two weeks before the next hearing date. Counsel must submit an amendment to the settlement agreement rather than any amended settlement agreement. Counsel also must provide a red-lined version of any revised papers. Counsel also should provide the court with an explanation of how the pending issues were resolved, with references to any corrections to the settlement agreement and the class notice, rather than with a supplemental declaration or brief that simply asserts the issues have been resolved. The court is inclined to grant approval of an attorneys' fees request of only 30% of the gross settlement amount, which the court finds fair, adequate and reasonable for the settlement of this size. The parties may either reduce the attorneys' fees request by amendment to the settlement agreement and the class notice, or Plaintiffs shall provide documentation and support for any request higher than this percentage at the final approval stage. The motion fails to provide the class members' and aggrieved employees' estimated individual recovery under the proposed settlement, including the estimated high, low and average payments to be paid to class members and aggrieved employees. The average payment must be provided for preliminary approval, but if the high and low estimated payments are not available at this time, they must be provided in the motion for final approval. The allocation of only 10% of the settlement payments for wages appears to be low. Either an increase to 33 1/3% or an explanation of why the figure is not at least 33 1/3% is required. Paragraphs 8.6 and 8.8.4 of the settlement agreement and Section 4(3) of the class notice state that the Administrator will resolve any workweek disputes. The documents should reflect instead that, while the Administrator and the parties will attempt to resolve any such dispute, the court will ultimately decide any unresolved dispute. Paragraph 8.5.2 of the settlement agreement states that the administrator shall make the final determination as to the authenticity of an opt-out request. The documents should reflect instead that the court will ultimately decide any
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		unresolved dispute regarding the authenticity of an opt-out request. The scope of the releases in Paragraphs 6.2 and 6.3 of the settlement agreement are overbroad. The phrase “and ascertained in the course of the Action” must be removed from both releases. Rather than having class members prepare their own opt-out requests, the class notice must include an exclusion form that class members can complete and submit. The form should be referenced in the class notice. The class notice pages must be numbered. In Section 3 of the class notice, the phrase “Court Approved Deductions from Gross Settlement.” should be amended to state “Deductions from Gross Settlement Subject to Court Approval.” Counsel should propose a realistic Final Approval Hearing date, bearing in mind that all papers in support of the Final Approval Hearing, including detailed hourly breakdowns of plaintiffs’ attorneys to support a lodestar cross-check, detailed plaintiff attorney cost breakdowns, an Administrator declaration and invoice, and plaintiffs’ declarations to support the enhancement request, must be filed at least 16 calendar days before the Final Approval Hearing date, to provide enough time for court review, and must be served in compliance with CCP notice of motion requirements. Plaintiffs are ordered to give notice of this ruling to the LWDA and Defendant.
10	30-2025-01497724 Yorba Canyon, LLC vs. City of Yorba Linda	Petitioner and Plaintiff Yorba Canyon, LLC’s (“Petitioner”) Motion for Leave to File First Amended Verified Petition to Writ of Mandate, Prohibition, or Other Extraordinary Relief; Complaint for Declaratory Relief (“1AP”) is GRANTED. The proposed 1AP is not deemed filed. IT IS ORDERED THAT Petitioner shall file and serve the proposed 1AP within five (5) days of this ruling. The court GRANTS Petitioner’s request for judicial notice of the original petition in this action. (Cal. Evid. Code § 542(d).)